

File No.: EXP202105339

RESOLUTION No.: R/00083/2023

Considering the favorable appeal for reconsideration issued by the Director of the Spanish Agency for Data Protection, which challenges the Resolution of this Agency with reference number EXP202105339 dated September 20, 2022, which dismisses the complaint filed by Mr. A.A.A. against ORANGE ESPAGNE, S.A.U., for not having duly addressed his request to exercise rights established in the Regulation.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 28, 2021, Mr. A.A.A. (hereinafter, the complainant) exercised the right to erasure against ORANGE ESPAGNE, S.A.U. (hereinafter, the respondent), and his request, as stated by the complainant, did not receive the legally established response.

The complainant states that he receives emails with invoices for supposed services that have never been the subject of a judicial or extrajudicial payment request.

SECOND: In accordance with the mechanism prior to the admission of complaints filed with this Agency, as provided in Article 65.4 of LOPDGDD, which consists of forwarding them to the data protection delegates designated by the data controllers or processors, or to them when they have not designated any, and for the purpose indicated in the aforementioned article, the complaint was forwarded to the respondent for analysis and response within one month, which has been verified by a document dated January 13, 2022, received by this Agency.

The respondent states that the complainant exercised the right to erasure of his personal data through a legal representative, without sufficient documentation proving the representation of the interested party.

For this reason, the complainant was informed of the need to confirm the request in order to process and address the exercised right to erasure, and once the confirmation was received, the data under his ownership in the Jazztel brand was deleted, thereby addressing the right and formally responding to the complainant on December 13, 2021. Furthermore, it was informed that it was impossible to delete his data in the Orange brand due to an outstanding payment obligation and the ongoing contractual relationship.

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Documentation regarding this matter is attached.

Due to the statements made by the complainant, precautionary measures have been taken to suspend the debt recovery actions until this complaint is resolved.

THIRD: On January 24, 2022, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to the non-admission of the complaint for processing. The resolution was notified to the complainant on January 24, 2022, as evidenced in the file.

FOURTH: On February 9, 2022, the complainant filed an optional appeal for reconsideration through the Electronic Registry of the AEPD, against the resolution issued in file EXP202105339, in which he expressed his disagreement with the contested resolution, and provided new documentation and new facts, arguing that the response to his request was made outside the time limit established for this purpose by Article 12 of the GDPR, that is, after more than double the maximum permitted time had elapsed, and therefore it should be accompanied by a sanction.

That the respondent's response, which communicated the impossibility of deleting his data due to an outstanding payment obligation arising from an active contractual relationship, is untrue.

That the respondent informed via email about a supposed contract associated with two telephone lines, lines that were never contracted or used.

That following the criteria of a ruling from the National Court, it is understood that when a data subject denies the existence of a contract, the burden of proof lies with the one who claims its existence, and it has been repeatedly stated that the data controller must retain the necessary documentation to prove the consent of the data subject; therefore, it is the respondent's responsibility to prove it when its existence is denied by the data subject, as is the case here with any contractual relationship being denied.

That the invoices confirm the absence of any underlying legal relationship, as payment of 0.00 euros is claimed, so there is no attempt to evade payment, but rather a fraudulent use of personal data is being made.

It is understood that the respondent violates rights related to data protection, using personal data for spurious purposes contrary to current legality, which is why the contested solution overlooked a matter that should not have been disregarded, namely, obtaining evidence from Orange to prove the complainant's intention to enter into a contract.

For all these reasons, it is requested that the respondent be urged to delete the complainant's data.

FIFTH: On June 2, 2022, the appeal filed was sent to the data protection delegate of the respondent in accordance with the provisions established in the

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Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for the purpose of allowing the submission of allegations and the presentation of documents and justifications deemed appropriate.

The notification of the hearing procedure was made through electronic means on June 18, 2022, without any record of having accessed the content of the notification within the established timeframe. Consequently, after ten calendar days from its availability, in accordance with the provisions of Article 43.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), it is considered rejected.

SIXTH: That the appeal for reconsideration filed by the claimant against the resolution of this Agency issued on January 24, 2022, which agreed to the non-admission of the claim, on November 10, 2022, this Agency made available to the respondent the claim presented by the claimant, so that within a period of fifteen days they could submit the allegations they deemed appropriate, for which the following allegations were made, in summary:

The respondent states in the allegations made during the processing of the present procedure that, once the claim for lack of attention to the request for the right was received, it was verified that the transfer of the Appeal for Reconsideration filed by the claimant was not made. Screenshots of the internal notification systems are provided, showing that the notification of the appeal was not received in order to present allegations to it.

Upon the request for the deletion of their data by the claimant, the risk group, after conducting an initial report, determined that the contracting appeared to be entirely legal due to the documentation present in the internal systems of this company. A response was given both to the claimant and to this Agency, stating that the data could not be deleted due to an obligation to pay and that the contractual relationship remains active.

The claimant insists again that they did not contract the lines and, therefore, do not hold the debt. For this reason, the risk group was again informed, and after a thorough study, it was determined that the claimant had contracted three mobile lines and had only acknowledged the contracting of one for which portability was requested.

The signatures on the contract of the ported line and one of the unrecognized lines were similar. The signature was carried out via a PDA, and at times it is difficult for the client to replicate them exactly. From the report, it was determined that one of the signatures is exactly the same as that on the

contract of the ported line, which led to the conclusion that the claimant is considered the holder of this line, resulting in the cancellation of the other line.

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The request of the claiming party was correctly addressed in June 2022, rectifying the invoices of the two mobile lines. However, the removal is not appropriate as the claiming party maintains a debt on their fixed line corresponding to the convergent package "Pack Love" that they contracted.

Documentation of this fact is provided.

SEVENTH: After examining the allegations presented by the responding party, they are to be communicated to the claiming party, so that, within a period of fifteen working days, they may formulate any allegations they deem appropriate, without receiving a response.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, due to the acceptance of the optional appeal for reconsideration against the resolution issued in file EXP202105339, which gives rise to this procedure, it was communicated to the responsible entity so that it could analyze it, respond to this Agency within fifteen days, and prove that it had provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an agreement to admit it for processing, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the agreement to admit it for processing. After this period, the interested party may consider their complaint accepted.”

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The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed timely, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to commence a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of

sanctioning activity, circumstances that do not occur in the present case, considering that with the current procedure, the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, in accordance with Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, with the request being deemed addressed (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during the six-month period, unless there is a legitimate reason for it.

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On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

FOURTH: Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;

b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;

c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);

d) the personal data have been unlawfully processed;

e) the personal data must be erased for compliance with a legal obligation in accordance with Union or Member State law to which the controller is subject;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the

personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply where the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims.”

FIFTH: In the case analyzed here, the claiming party exercised their right to erasure, arguing that the right to erasure was not duly attended to.

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Given that not all data was deleted, as the data related to Jazztel was canceled and not that related to Orange.

The responding party answered the request by denying the petition made, considering that the contractual relationship is still active and that there is an outstanding debt.

The claiming party, through the appeal for reconsideration, does not acknowledge the ownership of certain telephone lines.

The responding party, after a thorough analysis, deletes the data of two mobile phone lines but justifiably denies the deletion of the data due to the existence of an outstanding debt related to a fixed telephone line.

That said, during the processing of the present procedure, the entity has responded to the requested right of deletion, clarifying the processes it undertook to address the exercised right and justifiably denying the requested deletion, with such allegation being communicated to the claiming party by this Agency, without receiving a response, where the entity informs that it proceeds to delete the data related to two lines and denies the deletion of another line due to an outstanding payment debt, thus informing the same. Therefore, with the measures adopted by the responsible party, the rights of the affected individual are duly restored.

Consequently, it is appropriate to formally uphold the present claim, as the response was duly issued during the processing of the procedure, without requiring additional actions by the data controller.

Furthermore, it should be noted that issues arising from the contractual relationship do not fall within the jurisdiction of the Spanish Agency for Data Protection to resolve the conflict underlying between the parties, nor to make assessments regarding the civil or commercial validity of the contract, the proper provision of the contracted services, or the interpretation of contractual clauses. The determination of legitimacy based on an interpretation of a contract signed between the parties must be pursued before the competent administrative or judicial bodies, as it exceeds the jurisdiction of the Agency.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by Mr. A.A.A., against the entity ORANGE ESPAGNE, S.A.U. However, it is not appropriate to issue a new certification by said entity, as the response was duly issued during the processing of the procedure, without requiring additional actions by the data controller.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to ORANGE ESPAGNE, S.A.U.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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